



Notification Waiver Determination

Accenture – Whalar Agency

Acquisition	Accenture Inc., a wholly-owned subsidiary of Accenture plc (together with its direct and indirect subsidiaries, Accenture), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Whalar Agency, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	13 July 2026

Parties to the Acquisition	The acquirer, Accenture, is a global professional services company headquartered in Dublin, Ireland. It provides a broad range of services across strategy, consulting, digital, technology, and operations designed to assist public and private clients by bringing client-specific industry solutions and services to accelerate reinvention and value creation. Accenture, through ‘Accenture Song’ (a tech-powered creative group), creates customer-led growth focusing on end-to-end customer agendas and bringing together customer growth strategy, marketing, sales, service, commerce, design, digital products, data and AI. The target, Whalar Agency, is a global creator and social media tech-enabled service business with proprietary platforms carved out from the Whalar Group. Whalar Agency comprises the Whalar Group’s creator and influencer marketing services agency that designs, executes and measures end-to-end influencer marketing campaigns for enterprise brands, supported by proprietary AI-enabled technology. The parties both supply marketing and communications services in Australia, including digital advertising and creator/influencer advertising services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. the parties' combined share in the supply of digital advertising services and the supply of creator/influencer advertising services in Australia is low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of digital advertising services and creator/influencer advertising services in Australia c. there appears to be a low risk of foreclosure or other anti-competitive vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act